

Raul focuses instead on evidence submitted in support of the application for default judgment. None of these demonstrate why Raul did not act on the documents he received in July 2024. Further, as noted above, the proof of service of summons is confirmed by Raul. The motion is denied as to Raul under Code of Civil Procedure section 473, subdivision (d).

Finally, Raul seeks relief under Code of Civil Procedure section 473.5. Code of Civil Procedure section 473.5 provides, in pertinent part that:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.

Here, service of the summons resulted in actual notice. Raul otherwise does not present any specific arguments as to these grounds. Code of Civil Procedure section 473.5 does not apply. The motion is denied as to Raul under Code of Civil Procedure section 473.5.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Sedano v. City of Fresno et al.***
Superior Court Case No. 23CECG04664

Hearing Date: August 11, 2026 (Dept. 503)

Motion: Motion to Compel Further Responses

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)